

CV-26-002154 WRIGHT, SHANNA vs SODHI, JAKRUN S – a) Plaintiff's Motion to Compel Further Responses to Plaintiff's First Set of Special Interrogatories – GRANTED in part and DENIED in part; b) Plaintiff's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Production of Documents - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) Plaintiff's Motion to Compel Further Responses to Plaintiff's First Set of Special Interrogatories is GRANTED in part as to Special Interrogatory Nos. 1–3, 6, and 10 and DENIED in part as to Special Interrogatory No. 11. Defendants shall serve further responses which are code-compliant no later than September 10, 2026. Each response shall include a statement that Defendants have made "a reasonable and good faith effort to obtain the information by inquiry" (Code Civ. Proc., §2030.220.) Defendant argues that the motion should be denied because Plaintiff did not meet and confer in person, by video, or teleconference. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) Here, Plaintiff initially sent written correspondence to Defendants outlining purported deficiencies with Defendants discovery responses and requesting to meet and confer. In response, Defendants served amended responses. Unsatisfied with the amended responses, Plaintiff avers that she subsequently emailed Defendants prior to filing the motion to compel and offered to confer by telephone, but Defendants stated that it could not respond because there was a pending demurrer. The Court finds Plaintiff's efforts constitute a reasonable and good faith attempt to meet and confer. Interrogatory Nos. 1–3 seek information concerning the identification of persons who participated in Plaintiff's representation, their roles, and a description of the work performed by two specific Defendants. Defendants generally refuse to provide substantive responses, instead stating either that their billing program does not track all users or that billing records have been provided but are incomplete. Defendants are not relieved from responding to the interrogatories simply because records are incomplete. (Code Civ. Proc., § 2030.220 ["If an interrogatory cannot be answered completely, it shall be answered to the extent possible."].) The same is true for Interrogatory Nos. 6 and 10—Defendants' responses point to an email log and/or email string but failed to fully identify the requested information. Defendants responded to Interrogatory No. 11 by referring to the summary of events prepared for the Parties' prior arbitration. This appears sufficient. Defendant shall provide verified further responses within 20 days. b) Plaintiff's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Production of Documents is GRANTED. Defendants shall serve further responses which are code-compliant no later than September 10, 2026. The requests for sanctions are DENIED. Defendant argues that the motion should be denied because Plaintiff did not meet and confer in person, by video, or teleconference. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) Here, Plaintiff initially sent written correspondence to Defendants outlining purported deficiencies with Defendants discovery responses and requesting to meet and confer. In response, Defendants served amended responses. Unsatisfied with the amended responses, Plaintiff avers that she subsequently emailed Defendants prior to filing the motion to compel and offered to confer by telephone, but Defendants stated that it could not respond because there was a pending demurrer. The Court finds Plaintiff's efforts constitute a reasonable and good faith attempt to meet and confer. Plaintiff seeks further responses to Request Nos. 2, 3, 5, 6, 8, 9, 13 and 14. For the most part, Defendants' opposition responds either that the requested documents do not exist or that all documents in Defendants' possession have been produced, but Defendants' statements in opposition are unsupported by any declaration. Further, each of Defendants' responses does not comply with the form of response required by Code of Civil Procedure section 2031.210 et seq. For example, each response does not include a statement of compliance (section 2031.220) and/or a statement of inability to comply (section 2031.230); nor did Defendants identify the specific request number to which the produced documents respond (section 2031.280). In addition, several responses appear deficient. For example, Request No. 3 seeks documents sufficient to show calendaring. The opposition states that responsive information does not exist but Defendants have also referenced a calendaring error. If these items once existed but do not exist now, Defendant should so assert. Defendant argues in opposition that the information is premature but that contention is unsupported by the cited legal authority. Instead, "a request for production of documents to be a legislatively authorized method of discovery of insurance information[.]" (Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 743–744.) Defendant shall provide verified further responses within 20 days. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 3f5488f4af3d4a1d90631f6f07929a6cb7435c8e810bfbf874dc54d4861d7bf4

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Defendant shall provide verified further responses within 20 days.

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